

- RAG Learning

2.13 Comparative — Pressure Groups

Politics — AQA (7152) — Paper 2 (Government and Politics of the USA and Comparative Politics)

US pressure groups are considerably more powerful than their UK counterparts — but the reason is **institutional opportunity, not national character**. Group behaviour in each country is a rational response to where power actually sits, which is why the two systems produce such different tactics from organisations pursuing similar ends.

1. Side by side

	UK	USA
Main target	Ministers and civil servants — the executive controls the legislative agenda	Individual legislators and their staff — whose votes are genuinely independent
Access points	Few — fused executive and legislature; devolution has added some	Many — separation of powers, bicameralism, the filibuster, federalism, the courts
Electioneering	Strictly limited by statutory spending caps; no candidate funding comparable to PACs	PACs donate directly; Super PACs spend without limit; scorecards; primary funding
Litigation	Can challenge executive action, secondary and devolved legislation, and obtain declarations of incompatibility, but cannot strike down an Act of Parliament	Can have <i>legislation</i> struck down as unconstitutional

Primaries	None — no way to threaten a legislator's renomination	The sharpest weapon available to a group
Regulation	Lobbying Act 2014 — register of <i>consultant</i> lobbyists only	Federal registration and disclosure of clients and expenditure; also criticised as inadequate
Characteristic structure	Policy communities / networks around departments	Iron triangles (committee–agency–group); issue networks in contested fields

2. Structural analysis — the access-point argument

The USA multiplies opportunities. A bill must pass the House, pass the Senate, survive the filibuster, be signed by the President and survive judicial review. Federalism adds fifty state governments with substantial powers over education, policing, elections and (since *Dobbs*) abortion. A group needs to succeed at only *one* point to block.

The UK concentrates them. Fusion of powers means a government commanding a disciplined majority controls both the executive and the legislative outcome. There is essentially *one* access point that matters: the executive, at the drafting stage.

Exam Tip: The qualification that earns top-band marks: **many access points are also many veto points.** US groups are therefore better at *blocking* and UK groups better at *obtaining*. A UK group that persuades a government with a secure majority can see its aim legislated quickly and in full; a US group must win at every stage. "More powerful" depends entirely on whether the group wants change or its prevention.

3. Rational analysis — why the tactics differ

Tactic	Return in the USA	Return in the UK
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Funding individual legislators	High — weak discipline means one member's vote can change an outcome; candidates need money continuously	Near zero — a whipped MP's vote is largely predetermined, and spending is capped
Primary challenges	High — threatens a legislator's career directly	Impossible — no primaries exist
Litigation	Very high — can deliver permanent nationwide change beyond legislative reversal	Moderate — forces a minister to retake a decision lawfully; the government can usually proceed anyway or legislate around it
Lobbying the executive	Moderate — the executive cannot deliver legislation alone	High — the executive controls the agenda and commands the majority
State/devolved lobbying	High — states hold decisive powers and are cheap to influence (ALEC's model legislation)	Growing since 1999, but devolved powers are narrower

The conclusion: group behaviour follows institutional opportunity. Where power is fragmented and legislators individually vulnerable, groups target individuals and courts. Where power is concentrated in a disciplined executive, groups target ministers and officials.

4. The litigation asymmetry

This deserves separate treatment because it is the difference students most often understate.

- **USA:** an entrenched constitution means a group can have *legislation* declared unconstitutional — permanent, nationwide, and reversible only by the Court itself or an unattainable amendment. The NAACP's strategy culminating in *Brown v Board of Education* (1954) achieved what a Congress dependent on southern Democratic votes never would have.
- **UK:** courts cannot invalidate an Act of Parliament. Judicial review challenges the legality of *executive* action and can quash secondary or devolved legislation, but a declaration of incompatibility leaves an Act in force. A determined government can retake the decision lawfully

— or legislate around a ruling, as the **Judicial Review and Courts Act 2022** did in reversing the *Cart* (2011) decision.

5. Cultural analysis

- **American associational tradition** — de Tocqueville observed in the 1830s that Americans formed voluntary associations for every purpose. Combined with deep suspicion of government, this encourages citizens to organise independently rather than rely on the state.
- **Rights-based discourse** — framing claims as constitutional rights makes litigation a normal form of political action, and the First Amendment right "to petition the Government" gives group activity explicit constitutional standing.
- **British insider consultation** — a tradition of negotiation between government and recognised representative bodies, with professional associations incorporated into policy-making. The expectation is that legitimate interests will be *consulted* rather than that they must campaign publicly.

Assessment of the cultural approach here: it explains why American associational density and litigious style *predate* the modern institutional arrangements. But the fact that UK group behaviour has shifted towards the US pattern as devolution and judicial review created new access points suggests institutions do more of the explanatory work than culture.

6. Similarities

- Both rely heavily on supplying **specialist expertise** to government, and in both, groups whose knowledge government needs secure privileged consultation.
- In both, success depends substantially on **alignment with the governing agenda** — the most reliable predictor in either system.
- Both have **lobbying registers criticised as inadequate**.
- Both face the **revolving door** problem.
- Both use media campaigning, demonstrations and direct action.
- **Elitist critiques apply to both:** influence tracks resources rather than numbers, and business enjoys structural leverage in each.

7. Pluralism and elitism in both systems

Group competition is genuine in both, and outcomes frequently reflect compromise — as pluralism predicts. But pluralism assumes **rough parity of access**, and that assumption fails in both: governments in each country depend on business investment and employment decisions, giving corporations *structural power* no membership campaign can match.

The standard conclusion is that both systems are **pluralist in form but elitist in effect** — differing in degree rather than kind. Post-*Citizens United* spending and the scale of the US lobbying industry sharpen the critique there; the UK's version is the reliance of parties on a small number of large donors.

8. Convergence?

The UK has moved towards the US pattern: devolution created additional access points; the Human Rights Act and expanded judicial review made the courts a serious arena; professionalised commercial lobbying and a revolving door have developed.

But the fundamentals remain distinct: no primaries, so no way to threaten renomination; statutory spending limits; and parliamentary sovereignty, so no court can strike down statute. Convergence in behaviour, divergence in structure.

Key terms

Term	Definition
Access point	An institutional opportunity to influence a decision
Veto point	An institutional stage at which a proposal can be blocked
Insider / outsider group	Group with / without privileged access to decision-makers
Iron triangle	Stable alliance of congressional committee, agency and interest group (USA)

Policy community	UK analogue — ministers, officials and insider groups in a policy area, with power concentrated in the executive
Super PAC	Committee spending unlimited sums independently (USA)
Structural power	Influence from government dependence on business investment and employment
Revolving door	Movement of personnel between government and lobbying or industry

Essential examples

- **NAACP and *Brown* (1954)** — litigation delivering permanent change; no UK equivalent possible.
- **NRA scorecards and primary funding** — a lever UK groups structurally cannot have.
- **BMA and NFU** — UK insider groups embedded in departmental consultation.
- **Lobbying Act 2014 vs US federal registration** — both criticised, for different reasons.
- **ALEC** — model legislation supplied to US state legislatures; federalism as an access point.
- **Judicial Review and Courts Act 2022** — the UK government narrowing a route groups had come to rely on; Parliament's final word.